

ELECTION, TERM OF OFFICE, AND VACANCY IN OFFICE

School Board members are elected by the public for four-year terms. Mid-term vacancies are filled by appointment using procedures outlined in this policy.

Staggered terms for School Board members will be established using a lot drawing by the Loudoun County Electoral Board at its first meeting of 2023, but no later than January 31, 2023. Members of four of the nine districts, inclusive of the at-large district, will be elected to the Loudoun County School Board for four-year terms in November 2023 and the members of the remaining five districts will be elected to the Loudoun County School Board for two-year terms in November 2023. Thereafter, all members shall be elected for four-year terms, and the school board elections shall be conducted biennially for staggered terms.

A. Election

1. School Board members are elected to the Loudoun County School Board. One member is elected from each election district in the county and one member is elected from the school division at large.

2. The election of School Board members shall be held in November. Except as provided in Subsection (A)(3) below, the term of office for all School Board members shall begin on January 1 following their election.

3. A vacancy in the office of School Board member is filled by appointment by the School Board to fill the office until either the vacancy or appointee's seat is filled by a special election or general election.

4. Any person elected, reelected, appointed or reappointed as a member of the School Board shall:

- a. Be furnished with copies of the following by the Superintendent or Division Counsel within two weeks following election, reelection, appointment or reappointment:
 - (i) The Virginia Freedom of Information Act, §§ [2.2-3700 to 2.2-3714](#);
 - (ii) The Virginia Public Records Act, §§ [42.1-76 to 42.1-91](#);
 - (iii) The State and Local Government Conflict of Interest §§ [2.2-3100 to 2.2-3131](#); and
 - (iv) Such other provisions of the Code of Virginia as shall be directed by the General Assembly.

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As all of the foregoing may from time-to-time be amended or reenacted by the General Assembly; and

b. Read and become familiar with the provisions thereof.

c. Shall file, as a condition of assuming office, a disclosure statement of their personal interests and other information as is required under the State and Local Government Conflict of Interests Act pursuant to Va. Code § 2.2-3117. Such statements shall be maintained as public records for five years in the office of the school board clerk and shall be made public no later than six weeks after the filing deadline.

B. Procedure to Fill Vacancy in School Board

1. Within fifteen (15) days of the occurrence of a vacancy, the School Board shall petition the circuit court to issue a writ of election to fill the vacancy. However, no petition is necessary if the general election at which the vacancy is to be called is scheduled in the year in which the member's term expires. Further, no election to fill a vacancy shall be held if the general election at which it is to be called is scheduled within sixty (60) days of the end of the term of the office to be filled.

2. Within forty-five (45) days of the vacancy, the remaining members of the School Board must appoint a qualified voter of the election district in which the vacancy occurred to fill the vacancy. As soon as practical after the vacancy occurs, the School Board shall advertise the vacancy seeking qualified candidates. The School Board shall set a deadline for the submission of applications to fill the vacancy not to exceed ten (10) calendar days from date of the vacancy posting. Applications shall include a description of the individual's qualifications and any other pertinent information. These applications shall be used to verify with the Registrar's office that the applicants are qualified voters of the district.

3. At least seven (7) days prior to the appointment by the School Board, the School Board must hold a public hearing to receive the views of citizens. Notice of this hearing must be given at least ten (10) days prior to the hearing by publication in a newspaper having a general circulation within the school division.

4. At the public hearing, the School Board will receive public comment on the applicants and their qualifications. Each qualified applicant shall be given up to five (5) minutes to address the School Board. The School Board will have the opportunity to ask questions of the applicants, each of whom will be asked the same questions. No person whose name has not been considered at the public hearing shall be appointed to fill the vacancy.

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5. The School Board shall establish a meeting date to select an applicant to fill the vacancy, which date shall be within forty-five (45) days of the vacancy. The first applicant to achieve a majority vote from the existing School Board members shall be appointed to fill the vacancy. The appointed candidate shall remain in the position until the vacancy is filled by special or general election. The individual appointed to fill the vacancy must qualify within thirty (30) days of their appointment as provided in §15.2-1522-23 of the Code of Virginia (1950), as amended.

6. If a majority of the School Board members cannot agree or do not act, the judges of the circuit court shall make the appointment.

7. If the vacancy occurs within 90 days prior to the next such general election, the election must be scheduled for a second ensuing general election.

[Former Policy 2-5]

Adopted: 10/12/76

Revised: 8/27/85, 6/22/93, 6/25/96, 9/28/99, 4/09/03, 5/25/10, 9/13/16, 1/25/22

Current Revision: 11/15/22

Legal Refs: Code of Virginia §§ [2.2-3100.1](#), [2.2-3117](#), [2.2-3702](#), [42.1-76.1](#), [15.2-1522](#), [15.2-1523](#), [22.1-57.3](#), [24.2-226](#), [24.2-227](#), [24.2-228](#), [22.1-57.3:1.1](#)